

specificity "to a limited number of conversations. . . ." Moreover, the request for production there was limited to materials that might themselves contain evidence of criminal activity of persons then under investigation or indictment. Finally, the intrusion was carefully limited to an *in camera* examination, under strict limits, by a single United States District Judge. That case does not stand for the proposition that the Judiciary is at liberty to order *all* papers of a President into custody of United States Marshals.¹¹

United States v. Nixon, therefore, provides no authority for Congress' mandatory regulation of Presidential papers simply "to promote the general Welfare" which, of course, is a generalized purpose. No showing has been made, nor could it, that Congress' functions will be impaired by the former President's being allowed to control his own Presidential papers.¹² Without any threat whatever to its own functions, Congress has by this statute, as in *Buckley v. Valeo*, exercised authority entrusted to the Executive Branch.¹³

¹¹ Appellees, of course, would view that sort of intrusion as an intra-branch confrontation, since United States Marshals are officials of the Executive Branch, at least so long as the District Judge simply ordered the Marshals to take custody of and to review the documents without turning them over to the court. This is, of course, sheer sophistry.

¹² Of course, *United States v. Nixon* pertained only to the setting of Judicial-Executive conflict. Nothing in our holding suggests that, even if Congress needed Presidential documents in connection with its legislative functions, the constitutional tradition of Presidential control over Presidential documents in the face of legislative demands could be abrogated. We expressly stated in *Nixon* that "[w]e are not here concerned with the balance between . . . the confidentiality interest and congressional demands for information" 418 U. S., at 712 n. 19.

¹³ In his concurring opinion, Mr. JUSTICE POWELL concludes that Title I was addressed essentially to an "emergency" situation in the wake of appellant's resignation. But his opinion does not present any analysis as to whether this particular legislation, not *some* other legislation, is necessary to achieve that end. Since Title I commands confiscation of